

16. *Fernandez v. Powered By Fulfillment Inc., et al*, Case No. CIVSB2313371
Plaintiff's Motion for Leave to File Second¹ Amended Complaint
7/27/26, 9:00 a.m., Dept. S-17

The Court is inclined to **GRANT** this unopposed motion. There is some confusion as to whether this proposed amendment should be couched as a *First* Amended Complaint (see footnote 1) or a *Second* Amended Complaint. Nevertheless, a proposed title correction would be a non-substantive change.

Here, the proposed amendment does "not allege any new Labor Code violations" involving the "same parties that were included in Plaintiff's DOE Amended Complaint. (Wheeler Decl., ¶14.) Thus, in light of the public policy to allow liberal amendment to the pleadings, there appears to be no prejudice and the Court would allow. (*Howard v. County of San Diego* (2010) 184 Cal.App.4th 1422, 428 [policy favoring amendment is "so strong that it is a rare case in which denial of leave to amend can be justified"].) Plaintiff will have twenty days leave to file the amended complaint.

17. *Baker, et al, v. Chaffey Joint Union HSD., et al*, Case No. CIVSB2128630 (CIVSB2134233)
Def. District's Motion for Summary Judgment or Summary Adjudication (Baker)
Def. District's Motion for Summary Judgment or Summary Adjudication (ML)
7/27/26, 8:30 a.m., Dept. S-17

These matters were originally heard on May 26, 2026, but ruling was postponed until after hearing and ruling on class certification.

Tentative Rulings

As to Requests for Judicial Notice: Within its replies, the District requested notice of the Government Claims filed by Plaintiffs Baker, Doe, and (former plaintiff) GS. The Court would **DENY** as it is improper to rely on new evidence and argument within a reply.

¹ Notably, though the notice refers to the motion for a First Amended Complaint, the Points & Authorities and other supporting documents refer to a motion for a *Second* Amended Complaint. The Court does not have a First Amended Complaint on file and, therefore, the reference to a *Second* Amended Complaint appears to be errata. No notice of errata has been filed, and the proposed amendment is titled *Second* Amended Complaint. The Court will inquire and confirm that the declaration and Points & Authorities relate to the proposed *First* Amended Complaint and that the proposed complaint will be revised accordingly.